# Rekha Gupta vs Harish Chandra Aggarwal on 17 December, 2025

## Author: Amit Sharma

## Bench: Amit Sharma

$~218
*IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CONT.CAS(C) 235/2023 & CM APPL.31898/2023(Direction)
CM APPL. 37484/2023(Early hearing)
REKHA GUPTA
Through: Ms
Mr
pe

versus

HARISH CHANDRA AGGARWAL .....Responde
Through: Mr. Vipul Goel, Adv. with respo
in person.

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA
ORDER

% 17.12.2025

1. This hearing has been done through hybrid mode.

2. The present petition has been filed seeking willful disobedience of an undertaking given by the respondent before this Court as recorded in common order dated 31.05.2022 passed in BAIL APPLN.1422/2022 & CRL.M.C. 2710/2022.

3. Vide order dated 15.05.2025, the learned Predecessor Bench of this Court had observed as under:
-

> "1. Despite previous Order of this Court dated 17th April 2025, respondent/ Mr. Harish Chandra Aggarwal, is present in Court and has not been able to give a concrete undertaking to the Court, as to how he plans to shore up the dues, payable to the petitioner.
>
> This is a digitally signed order.
>
> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC

Server on 22/12/2025 at 20:55:48

2. Cheques of Rs. 5 lakh each have been handed up to the petitioner, in Court, bearing cheque Nos. 355911, 355912, 355913 and 682820, drawn on Punjab National Bank dated 15th May 2025.

3. Considering the previous history of multiple bounced cheques, Ms. Suruchii Aggarwal, Senior Advocate is not sanguine, that these cheques will be honoured.

4. Mr. Aggarwal, who is present in Court along with his counsel and Senior Counsel undertakes that these cheques will be duly honoured.

5. Further, on the request of his counsel it is agreed that cheque will be deposited on 16th May 2025, 19th May 2025, 21st May 2025 and 23rd May 2025.

6. At the request of Mr. Harish Chandra Aggarwal, the matter is being listed again, for him to furnish a concrete undertaking to the Court, as to how he plans to pay up the rest of the money in proximate time.

7. His consistent violation and disobedience have already been summarised by the Court in order dated 17th April 2025.

8. Respondent's conduct today, of providing Rs. 20 lacs, that too by way of cheques, and further, asking the petitioner to deposit the same at every alternate day, is also another link, in a long chain of events, reflecting wilful disobedience.

9. However, to give another opportunity to the respondent, list for 'compliance' on 14th July 2025. The respondent will be present in Court on the next date of hearing.

10. Needless to state, issue consists of payment of principal, as well as, interest, to which the petitioner is entitled to, as per the settlement; respondent ought to be conscious of both, the principal and interest, when he gives his concrete undertaking, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48 on the next date of hearing.

11. Order be uploaded on the website of this Court."

4. Thereafter, on 29.05.2025, learned Predecessor Bench of this Court had passed the following order: -

1. This application has been filed for maintainability of the contempt petition on the grounds that the applicant/respondent is going through double jeopardy.

2. The issue revolves around an undertaking which was given before this Court in Bail Application No.1422/2022 arising out of FIR No.12/2022, P.S. Barakhamba Road, under Sections 406/420 IPC.

3. The Court on 31st May 2022 noted that the respondent had been accused of cheating, fraud, and misappropriation of money to the tune of Rs. 90 Lacs under an agreement to give a land measuring 666 sq. yds. under the scheme launched by a real estate project in Faridabad, Haryana.

4. The quashing petition being CRL.M.C. 2710/2022 had been filed, based upon settlement compromise deed dated 20th May 2022, wherein the petitioner agreed and undertook "to pay to respondent No. 2, a sum of Rs. 2 Crores, in full and final settlement of her claims".

5. Pursuant to the same, post-dated cheques were handed over, however, the cheques were all dishonoured subsequently, and therefore, proceedings under Section 138 Negotiable Instruments Act, 1881.

6. Aside from that, since the undertaking to pay, had not been complied with, this contempt petition was filed.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48

7. The matter has been on the board since 2023 and various opportunities have been given to the respondent to purge the contempt. In fact, recently, on 17th April 2025, the following order was passed:

**** **** ****

8. The matter was then listed for compliance on 15th May 2025 and the following order was passed:

**** **** ****

9. Despite having been given these opportunities to purge the contempt, pursuant to his wilful disobedience of the undertaking given to the Court, the respondent was given yet another opportunity and the matter has now been listed for 14th July 2025.

10. After two years and numerous orders being passed allowing the respondent to purge their contempt, this maintainability application has been filed, on the basis that, the contempt petition cannot subsist. The premise on which the maintainability application has been moved is completely specious and fallacious. The Section 138 NI Act proceedings are separate proceedings under a statute that is premised on the dishonour of the cheques whereas contempt proceedings have been initiated for wilful disobedience of an 'undertaking to pay'.

11. The undertaking given to the Court by respondent was to 'pay' the amounts of Rs.2 Crores, which has not been complied, as of yet, and therefore, there is no reason why the contempt proceedings are not maintainable.

12. The Court also considers the moving of this maintainability application as ill-founded stratagem, in order to somehow avoid the payment, and therefore, in fact aggravating the contempt, particularly in the context of what has been stated above.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48

13. Accordingly, the application is dismissed with costs of Rs.15,000/- to be paid to DHCLSC within a period of four weeks.

CONT.CAS(C) 235/2023

1. List on 14th July 2025, the date already fixed.

2. Order be uploaded on the website of this Court."

5. On 14.07.2025, it was noted by the learned Predecessor Bench that out of Rs. 2 crores, which have been undertaken to be paid by the respondent, Rs.80 lakhs had been paid till then, and Rs.1.2 crores was still pending beside the interest component. On the said date, learned counsel appearing on behalf of the respondent, had submitted that one plot of land has been sold and another plot of land was in process of being sold for which an Agreement to Sell has to be concluded in approximate time and 15 days' time was to sought to pay the substantial amount of money with respect to the balance amount and the case was then put for 06.08.2025.

6. On the next date of hearing, i.e., 06.08.2025, the relevant documents as directed by the Court with respect to the sale of the property were not placed on record and it was stated that the same were in the possession of the respondent, who was stated to be not present in the Court on the said date when the matter was taken up for hearing. Accordingly, the matter was adjourned to 12.08.2025.

7. On 12.08.2025, on the instructions of the respondent, following statements/averments were recorded: -

> "3. Learned counsel appearing on behalf of the respondent submits that the latter has entered into an agreement to sale with respect to sale of plot no. 80, Krishna Residency, Sector - 49, This is a digitally signed order.
>
> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48 Faridabad, Haryana for a consideration of Rs. 80,73,000/-. It is submitted that respondent has received Rs. 8,10,000/- as earnest money with regard to the aforesaid sale and out of the said amount cheque bearing no. 355927 dated 12.08.2025 for Rs. 7,50,000/- drawn on Punjab National Bank, Hauz Khas Branch is being handed over to the petitioner, who acknowledges the receipt of the same. Copy of the agreement has been handed up in Court today and the same is taken on record. Copy of the same has been supplied to learned Senior Counsel for the petitioner.
>
> 4. Learned counsel appearing on behalf of the respondent submits that the next date for installment of 16,20,000/- is on or before 05.11.2025 and thereafter the balance payment, i.e., Rs. 56,40,000/- is to be paid within six months of the agreement.
>
> 5. Learned Senior Counsel appearing on behalf of the petitioner submits that this is in violation of the undertaking given by the respondent on 14.07.2025, whereby it is recorded that the respondent had sought 15 days time to pay substantial amount of money with respect to the balance amount, i.e., Rs. 1.2 crores alongwith interest."

8. With the aforesaid observation, the matter was adjourned to 08.10.2025 and the respondent was also directed to appear in person on the next date of hearing.

9. On 08.10.2025, the respondent did not appear in person and in view thereof, bailable warrants were issued against him.

10. On 26.11.2025, in pursuance of the bailable warrants, respondent appeared in person and handed over a cheque of Rs. 4 lakhs to the petitioner and had submitted that a sum of Rs. 12,20,000/- will be paid to the petitioner on the next date of hearing. Respondent was again directed to remain present before Court on the next date of hearing.

11. On 15.12.2025, the respondent did not appear and it was submitted on This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48 his behalf that he was getting treatment from the dispensary in Delhi High Court premises.

Accordingly, the matter was directed to be listed today.

12. Respondent appears alongwith his counsel. On a pointed query, it is stated that a buyer had to pay a certain amount to the respondent which has not been paid till yet. It is noted that the respondent has not paid the sum of Rs.12,20,000/- as undertaken by him on 26.11.2025 before this Court and again a request has been made for deferment for payment in terms of the said undertaking given to this Court as well as in the order passed by learned Predecessor Bench of this Court.

13. In these circumstances, the respondent has been given an opportunity to argue as to why contempt proceedings may not be initiated against him.

14. On being asked to argue with respect to the contempt, learned counsel for the respondent submits that the respondent is still ready and willing to abide by the aforesaid undertaking.

15. At this stage, he has handed over one cheque dated 17.12.2025 of Rs.2,20,000/- and three cheques dated 07.01.2026 of out of which two cheques are of Rs. 4,00,000/- each and one cheque is of Rs. 2,00,000/-. Copies of the same have been retained on record and original has been handed over to learned Senior Counsel for the petitioner. The three cheques of consolidated sum of Rs.10,00,000/- are dated 07.01.2026 and are to be deposited on 07.01.2026.

16. In these circumstances, one more opportunity is given to the respondent to abide by the undertaking given, as noted hereinbefore. 17 Learned counsel for the respondent submits that in pursuance to the Agreement to Sell, the respondent shall be receiving a balance amount of Rs.56,40,000/- approximately by 05.02.2026. Accordingly, let the balance This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48 payment be made to the petitioner.

18. List for compliance of the balance principal amount on 10.02.2026.

19. Respondent shall remain present in Court on the next date of hearing.

AMIT SHARMA, J DECEMBER 17, 2025/nk/ns This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/12/2025 at 20:55:48